

Mulayam Singh v. U.P. Power Corporation, Lucknow

Allahabad High Court · Division Bench · 2 August 2017 · Writ-C No. 34211 of 2017 · Writ-C No. 34211 of 2017 · **Writ disposed of; petitioner relegated to clauses 6.5, 7.10 and 6.14.**

HEADNOTE

Electricity billing disputes are to be decided by the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005. A consumer aggrieved by that decision may file an appeal or approach the Consumer Grievances Redressal Forum under clause 7.10. If quantum is not disputed and the consumer proposes to deposit, instalments may be sought from the Executive Engineer under clause 6.14. A third writ on the same arrears was disposed of by directing those remedies.

FACTUAL SUMMARY

Mulayam Singh challenged recovery of Rs 1,18,860 of electricity arrears, referred by the Executive Engineer, Etah Division, to the Collector. Writ-C No. 1896 of 2017 was dismissed on 16 January 2017 because he had not approached departmental officers. After he represented on 23 January 2017, Writ-C No. 13844 of 2017 directed the Executive Engineer to decide that representation within three weeks. This third petition again assailed the same billing. He disputed the factum of consumption and the bill.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing disputes

HOLDING

All billing disputes are to be decided by the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005. If the consumer is aggrieved, an appeal may be filed or the Consumer Grievances Redressal Forum approached under clause 7.10. Where the factum of consumption and billing is disputed, those remedies are to be availed. If the consumer does not dispute the quantum and proposes to deposit the amount, the Executive Engineer may be approached for instalments under clause 6.14. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RS 1,18,860 ARREARS AND THE FACTUM OF CONSUMPTION WERE CORRECTLY BILLED

Merits of the billing dispute left to the Executive Engineer under clause 6.5 and, if needed, clause 7.10. ¶ 1